

NOVEMBER 3 AMENDMENT TO OCTOBER 26th AMENDMENT BY SUBSTITUTE**ORDINANCE NO. _____**

ENTITLED: "AN ORDINANCE AMENDING CHAPTERS 10.44, WEIGHT LIMITS, WITHIN TITLE 10, VEHICLES AND TRAFFIC, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That sections of Chapter 10.44, Weight Limits, of Title 10, Vehicles and Traffic, is hereby amended as set out in this Ordinance. Sections currently existing in Chapter 10.44 not set out within this ordinance remain unchanged.

10.44.010 - Commercial motor ~~carrier~~ vehicle defined.

Unless the context of this chapter otherwise requires, the term "commercial motor ~~carrier~~ vehicle", when used in this chapter shall be construed to mean any truck, trailer or combination thereof, carrying or constructed to carry cargo other than personnel, ~~for gain or for profit~~, and having a rated load capacity ~~gross vehicle weight~~ of ~~ten thousand and one (10,001) pounds~~ one ton or more, ~~for hire~~.

10.44.020 - Purpose.

The prevention of unnecessary wear and tear on the streets of the city and the elimination of unnecessary traffic hazards and loss of life and property resulting from such traffic hazards, caused by the unregulated and unrestricted use of the streets of the city by certain types of motor vehicles, and the maintenance of a sound, well-regulated traffic system for the people of the city are declared to be the objectives of this chapter, and the provisions of this chapter are the means to that end. ~~In order to align the purpose and enforcement of this section, any revenue generated to the city from enforcement shall be directed by the City Treasurer to road maintenance or construction.~~

10.44.030 - Applicability.

The terms of this chapter shall not be construed to apply to any motor vehicle operating exclusively within the city and carrying cargo from place to place within the limits of the city and its immediate environs.

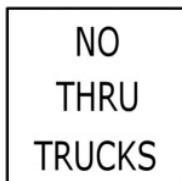
10.44.040 - Load ~~Thru truck~~ restrictions upon vehicles using certain highways.

When signs are erected giving notice thereof, no person ~~No commercial motor carrier~~ shall operate any vehicle with a gross vehicle weight in excess of the amounts specified in Schedule H, attached to the ordinance codified in this section and made a part hereof, at any time upon any

of the streets or parts of streets described in Schedule H **without a scheduled stop in such locality.**

Schedule H is adopted by reference and is on file in the offices of the city clerk, traffic engineer and police department.

Roads identified in Schedule H shall be identified by the black and white regulatory sign:



10.44.050 - Truck routes.

In order to expedite the movement of commercial motor ~~carrier~~ vehicle traffic within and through the city and to eliminate the traffic hazards and obstructions resulting from the unrestricted use of the streets of the city by such motor carriers, the streets listed in Schedule I, attached to the ordinance codified in this section and made a part hereof, are established and designated "truck routes," to be used by commercial motor ~~carriers-vehicles~~ when passing through the city in the directions indicated.

Schedule I is adopted by reference and is on file in the offices of the city clerk, traffic engineer and police department.

10.44.060 – Authority to weigh and measure.

The chief of police, or his designee, shall have the authority to require the driver of any vehicle operating on the streets of the city, and which he has reason to believe is ~~overweight or~~ oversized, to proceed with the vehicle to an appropriate weight station or stopping place for the purpose of determining whether this chapter has been complied with.

The chief of police, or designee measuring vehicle ~~size and~~ weight shall use calibrated scales and be certified in the use of such scales ~~and measurements.~~

10.44.70 – Height, width, weight and traffic control escorts – Permit conditions.

- A. No vehicle, unladen or with load or load-holding devices thereon, in excess of one hundred two (102) inches wide, fourteen (14) feet high, or eighty-five (85) feet in length, single or in combination, shall be driven upon any city street without a permit provided by the traffic engineer.
- B. Any vehicle over twenty thousand (20,000) pounds on one axle, thirty-six thousand (36,000) pounds on tandem axles, forty-two thousand (42,000) pounds on tri-axles and any vehicle over ~~eighty thousand (80,000)~~ one hundred seventeen thousand (117,000) pounds is overweight and shall not be driven upon any city street without a permit provided by the traffic engineer.

- C. Public safety vehicles, such as fire apparatus, snow plowing equipment, police rescue vehicles, tow trucks, and vehicles used in emergency infrastructure repair are exempt from this section.

10.44.80 – Permit Application.

- A. A person may operate a vehicle with a gross vehicle weight in excess of the amounts specified in Schedule H and 10.44.070, and/or a height or width in excess of the amounts specified in 10.44.070, by receiving a special permit for operation of oversize and overweight loads on City of Cheyenne roads.
- B. Permit applications shall be filed with the traffic engineer within the time specified by the permit application unless there is an emergency.
- C. Emergencies shall be approved by the traffic engineer on a case-by-case basis and require a permit to be obtained after the fact.
- D. The traffic engineer shall be permitted to create permit applications in conformity with the requirements of Wyoming State Statute and this Chapter. The requirements of such permits shall be approved by resolution of the governing body.
- E. Permit applicants must agree to obey all state laws and ordinances of the city of Cheyenne.
- ~~F. Issuance of a permit shall not relieve the holder or their assigns acting on the holder's behalf from responsibility for damages to any roadways or structures or other appurtenances.~~
- G. (Strike letter G replace with F) At the direction of the traffic engineer, police or private escorts may be required for traffic control.

10.44.90 – Permit Fee Schedule

- A. For oversize vehicles, in accordance with Section 10.44.070(A), the permit fee shall be established by resolution of the governing body on recommendation of the city engineer on any load that is in excess of one hundred two (102) inches wide, fourteen (14) feet high, or eighty-five (85) feet in length, single or in the combination.
- B. For overweight vehicles, in accordance with Section 10.44.070(B) and/or Schedule H, the fee shall be established by resolution of the governing body on recommendation of the city engineer ~~the city engineer~~ on any load that is in exceeds the amounts specified in Section 10.44.070(B) and/or Schedule H.
- ~~C. Any additional costs of police escorts and other related traffic control fees shall be assessed by the traffic engineer and chief of police.~~
- ~~D. All remedial permits issued after the oversize or overweight load was moved will be assessed an additional two hundred fifty dollar (\$250.00) fee per load in addition to original permit fees if the load cannot be divided to meet legal standards.~~

10.44.100 – Permitted operation on non-truck-route streets.

The operation of commercial motor ~~carriers~~ vehicle over and along any city street not designated a truck route, shall be permitted only for the purpose of reaching a point of destination inside the city, provided that:

- A. One Destination Point. All commercial motor ~~carriers~~ vehicles having a single destination point in the city shall proceed only over an established truck route and shall deviate only at the intersection with the street upon which such traffic is permitted nearest to the destination point. A deviating commercial motor ~~carrier~~ vehicle shall return to the truck route by the shortest possible route;
- B. Multiple Destination Points. All commercial motor ~~carriers~~ vehicles having multiple destination points shall proceed only over established truck routes and shall deviate only at the intersection with the street upon which such traffic is permitted, nearest to the first destination point. Upon leaving the first destination point, a deviating commercial motor ~~carrier~~ vehicle shall return to the nearest truck route and proceed to other destination points by the shortest direction, and only over streets upon which such traffic is permitted. Upon leaving the last destination point, a deviating commercial motor ~~carrier~~ vehicle shall return to the truck route by the shortest permissible route.
- C. Routes for Construction as Designated by the Traffic Engineer. If ~~the~~ the traffic engineer ~~may~~ appoints a truck route as part of a construction site plans or construction activities, information shall be included in the design plans and specifications prior to the project being put out to bid.

10.44.110 – Operation of tracked vehicles – prohibited on city streets.

No person shall operate any vehicle equipped with continuous tracks, at any time, upon any of the streets or parts of streets within the city of Cheyenne.

10.44.120 – Bypass of port of entry – prohibited.

No commercial vehicle shall bypass any port of entry by using city streets within the city of Cheyenne.

10.44.130 – Violation – Penalty

It is unlawful for any person to operate or cause to be operated any vehicle within the city in violation of this chapter. Violations of this chapter are punishable in accordance with the general penalty provisions of Chapter 1.24 of the Cheyenne Municipal Code.

Section 2. That Section 10.44.040, Load restrictions upon vehicles using certain highways, of Chapter 10.44, Weight Limits, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, is hereby amended to adopt that amended Schedule H attached to this Ordinance as Exhibit A.

Section 3. That Section 10.44.050, Truck routes, of Chapter 10.44, Weight Limits, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, is hereby amended to adopt that amended Schedule I attached to this Ordinance as Exhibit B.

Section 4. This ordinance shall be in full force and effect on April 1, 2021.

FIRST READING: _____
SECOND READING: _____
THIRD AND FINAL READING: _____

Marian J. Orr, Mayor

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

Publish: _____
Wyoming Tribune Eagle